



CONSTANCE LAKE FIRST NATION INDEPENDENT CONTRACTOR AGREEMENT

Between Constance Lake First Nation
and the Contractor named within.

**Issued under the CLFN Procurement & Housing Policy
approved by Chief and Council, 2026**

*This Agreement is governed by the inherent jurisdiction of Constance Lake First Nation
and the laws of Ontario applicable to construction contracts on reserve.*

CLFN HOUSING DEPARTMENT

P.O. Box 4000, Constance Lake First Nation, ON P0L 1B0



INDEPENDENT CONTRACTOR AGREEMENT — RENOVATIONS & REPAIRS

THIS AGREEMENT is made and entered into on the date last signed by the Parties below, between:

THE CLIENT:

CONSTANCE LAKE FIRST NATION — HOUSING DEPARTMENT

P.O. Box 4000, Constance Lake First Nation, Ontario P0L 1B0

(hereinafter referred to as the "Client" or "CLFN")

— AND —

THE CONTRACTOR:

Contractor Legal Name:	
Operating Name (if any):	
Business Address:	
City / Province / Postal:	
GST/HST Registration #:	
WSIB Account #:	
Authorized Signatory:	
Signatory Title:	
Telephone:	
Email:	

(hereinafter referred to as the "Contractor")

(individually a "Party"; collectively the "Parties")

THE PROJECT:

Property Address:		Project Type:	
SOW Reference:		Quote Reference:	
Contract #:		Contract Date:	

Situated within Constance Lake First Nation Reserve, Ontario (hereinafter referred to as the "Property").

RECITALS

WHEREAS Constance Lake First Nation owns and administers housing stock and related community assets on its reserve, pursuant to the *Indian Act*, R.S.C. 1985, c. I-5, and the inherent jurisdiction of Constance Lake First Nation over its lands and members; **AND WHEREAS** CLFN requires the Services described in this Agreement at the Property and has selected the Contractor following its procurement and qualification process administered through the CLFN Renovations & Repairs (R&R) Module; **AND WHEREAS** the Contractor represents that it has the qualifications, skilled trades, equipment, insurance, and statutory registrations required to perform the Services; **NOW THEREFORE** in consideration of the mutual covenants contained herein, the Parties agree as follows:



1. DEFINITIONS

In this Agreement:

- (a) **"Building Code"** means the *Building Code Act, 1992* (Ontario) and Ontario Regulation 332/12 (Building Code), as amended.
- (b) **"Construction Act"** means the *Construction Act, R.S.O. 1990, c. C.30*, as amended (including amendments effective January 1, 2026 under Bill 216).
- (c) **"CPA"** means the *Consumer Protection Act, 2002, S.O. 2002, c. 30*, as amended, and, upon proclamation, the *Consumer Protection Act, 2023*.
- (d) **"Deficiency"** means any element of the Services that does not conform to the SOW, the Contract Documents, the Building Code, manufacturer specifications, or industry standards of workmanship.
- (e) **"Housing Manager"** means the CLFN employee assigned to administer this Agreement, currently Cheryl Neegan (or successor in office).
- (f) **"OHSA"** means the *Occupational Health and Safety Act, R.S.O. 1990, c. O.1*, as amended.
- (g) **"Property"** means the premises identified above on the Constance Lake First Nation Reserve.
- (h) **"Proper Invoice"** has the meaning given in section 6.1 of the Construction Act and section 8 of this Agreement.
- (i) **"Services"** means the work, materials, and deliverables described in Schedule A (Statement of Work).
- (j) **"Substantial Performance"** has the meaning given in section 2(1) of the Construction Act.
- (k) **"WSIB"** means the Workplace Safety and Insurance Board.

2. SERVICES AND STATEMENT OF WORK

2.1 Scope. The Contractor shall perform the Services described in Schedule A — Statement of Work at the Property, in accordance with this Agreement and all applicable laws.

2.2 Quote and SOW. Schedule A incorporates the Contractor's Quote referenced on page 1, which forms part of this Agreement. In the event of conflict between this Agreement and the Quote, this Agreement governs.

2.3 Standard of work. The Contractor shall perform the Services:

- (a) in a good and workmanlike manner consistent with industry best practices;
- (b) in compliance with the Building Code, the *Electrical Safety Code* (where applicable), the *Fire Code*, OHSA, and all other applicable laws;
- (c) using new materials of the grade specified in Schedule A, unless otherwise approved in writing by the Housing Manager;
- (d) so as to minimize disruption to any occupants and neighbours of the Property.

2.4 Permits. The Contractor shall, at its own cost, obtain and maintain all permits, inspections, and approvals required for the Services unless otherwise specified in Schedule A. Copies shall be provided to the Housing Manager before commencement of the affected work.

2.5 Site access and occupancy. Where the Property is occupied, the Contractor shall coordinate access through the Housing Manager and shall provide the tenant at least twenty-four (24) hours' advance written notice of entry except in an emergency. The Contractor shall protect the tenant's belongings and personal information.

3. TERM AND SCHEDULE

3.1 Effective Date. This Agreement is effective on the date last signed by the Parties.

3.2 Commencement and completion. The Contractor shall:



- (a) Commence on or before:
- (b) Substantial Performance by:
- (c) Total Completion by:

3.3 Time of the essence. Time is of the essence. Delays caused by the Contractor's failure to schedule, staff, or supply the Services give rise to the remedies in section 14.

3.4 Extension. The completion dates may be extended only by written change order under section 7, or as a result of a Force Majeure Event under section 19.

4. PROJECT ADMINISTRATION

4.1 Housing Manager authority. The Housing Manager is CLFN's primary representative for this Agreement and is authorized to issue instructions, approve change orders within their delegated limit, conduct inspections, and accept or reject Deficiencies. Decisions exceeding the Housing Manager's delegation require approval from the Executive Director or Chief and Council per CLFN policy.

4.2 Contractor representative. The Contractor shall designate a single point of contact:

Site Lead Name:

Phone:

4.3 Progress reporting. The Contractor shall submit a brief progress update with each Proper Invoice, including photographs of completed work and a forecast of upcoming activities.

4.4 Records. The Contractor shall maintain on site a complete copy of this Agreement, all permits, the SOW, manufacturer specifications, change orders, daily logs, and Safety Data Sheets, available for inspection by the Housing Manager.

5. CURRENCY

All monetary amounts in this Agreement are in Canadian Dollars (CAD) and exclusive of HST/GST unless expressly stated otherwise.

6. COMPENSATION

6.1 Contract Price. Subject to adjustment by change order under section 7, the total fixed price for the Services is:

Contract Price (CAD, excl. tax) \$

plus applicable taxes (the "Contract Price").

6.2 Inclusive of all costs. The Contract Price includes all labour, materials, equipment, supervision, mobilization, travel, accommodation, disposal, permits, insurance, WSIB premiums, and all other costs necessary to complete the Services, except where Schedule A expressly identifies a CLFN-supplied item.

6.3 Payment schedule. The Contractor shall be paid in accordance with Schedule B — Payment Schedule.

6.4 Taxes. HST/GST shall be itemized separately on each invoice. The Contractor shall provide its valid GST/HST registration number on each invoice and is responsible for remitting all taxes to the appropriate authorities.

7. CHANGE ORDERS AND COST OVERRUNS

7.1 Written change orders required. No change to the Services, Contract Price, or schedule is authorized unless executed in writing as a change order signed by both the Contractor and the Housing Manager (or higher authority where required).

7.2 No verbal authorizations. Verbal instructions from any CLFN representative do not authorize additional cost, scope, or time. The Contractor proceeds with unwritten changes at its own risk and waives any right to additional compensation.



7.3 Cost overruns. The Contractor shall not be reimbursed for cost overruns arising from its own errors, omissions, poor estimating, productivity, weather (except as defined in section 19), or subcontractor performance.

7.4 Change order procedure. The Contractor shall submit a written change order request within five (5) business days of identifying the need. The Housing Manager shall respond within five (5) business days.

8. INVOICING AND PROMPT PAYMENT

(Construction Act compliance — Bill 216 amendments in force January 1, 2026)

8.1 Proper Invoice required. All invoices shall be submitted as a "Proper Invoice" within the meaning of section 6.1 of the Construction Act, including: contractor name and address; invoice date and period; reference to this Agreement and contract number; description of Services and materials with quantities; amount payable and payment terms; payee details; GST/HST number; and any additional information required by the Construction Act or this Agreement.

8.2 Submission. Proper Invoices shall be submitted electronically to:

Accounts Payable Email:

with a copy to the Housing Manager.

8.3 Owner's review (Bill 216). Within seven (7) days of receipt of an invoice, CLFN may issue a written notice identifying any deficiency that disqualifies the invoice from being a Proper Invoice. If no such notice is given within seven (7) days, the invoice is deemed a Proper Invoice for prompt payment purposes.

8.4 Payment timeline. CLFN shall pay each Proper Invoice within twenty-eight (28) days of receipt, less (a) the statutory holdback under section 9; and (b) any amount subject to a Notice of Non-Payment under section 8.5.

8.5 Notice of Non-Payment. Where CLFN disputes all or part of a Proper Invoice, it shall deliver a Notice of Non-Payment in the form prescribed by the Construction Act regulations within fourteen (14) days of receipt. Amounts not in dispute shall be paid within the 28-day window.

8.6 Subcontractor payment. The Contractor shall pay each of its subcontractors and suppliers in accordance with sections 6.5 and 6.6 of the Construction Act (generally, within seven (7) days of receiving payment from CLFN).

8.7 Interest on late payment. Amounts properly payable but unpaid past the statutory deadline shall bear interest at the rate prescribed under section 127(2) of the *Courts of Justice Act* or two percent (2%) per annum above the Bank of Canada overnight rate, whichever is greater.

8.8 Final invoice. The final Proper Invoice, including release of holdback, shall be submitted only after Total Completion and acceptance under section 14.

9. HOLDBACK (Construction Act)

9.1 Statutory holdback. CLFN shall retain a holdback of ten percent (10%) of the value of each Proper Invoice (the "Holdback"), as required by the Construction Act.

9.2 Publication and release. CLFN shall publish a Certificate of Substantial Performance once certified by the Housing Manager. The Holdback shall be released the day after the expiry of the lien period (sixty (60) days after publication), provided that: (a) no preserved liens exist; (b) the Contractor has delivered a Statutory Declaration under section 16; (c) all permit closures, occupancy approvals, and warranties have been delivered; and (d) all Deficiencies have been remedied.

9.3 Phased / annual release. Where the Construction Act permits phased or annual release of Holdback for projects exceeding the prescribed thresholds, CLFN may, in its discretion, elect to apply those provisions.

10. ADJUDICATION AND DISPUTE RESOLUTION

10.1 Statutory adjudication. The Parties acknowledge their right to refer a dispute to interim adjudication under Part II.1 of the Construction Act. Adjudication may be commenced at any time before, and within 90 days after, the date the contract is



completed, abandoned, or terminated.

10.2 Adjudicator. The Parties may agree on a private adjudicator. Failing agreement within four (4) days of the Notice of Adjudication, the matter shall be referred to the Authorized Nominating Authority (ODACC) for appointment.

10.3 Compliance with determination. Each Party shall comply with the adjudicator's determination within the timelines required by the Construction Act. Non-compliance entitles the other Party to suspend performance ten (10) days after delivery of the determination.

10.4 Negotiation first. Before initiating adjudication or litigation, the Parties shall use good-faith negotiation, escalating to the CLFN Executive Director if not resolved within ten (10) business days.

10.5 Governing law and forum. This Agreement is governed by the laws of Ontario and the federal laws of Canada applicable in Ontario. Subject to the Construction Act adjudication regime, the Ontario Superior Court of Justice has exclusive jurisdiction.

10.6 First Nation jurisdiction. Nothing in this Agreement waives, limits, or affects any inherent or treaty right, sovereign immunity, or jurisdiction of Constance Lake First Nation or its Chief and Council.

11. INSURANCE

11.1 Required coverage. Before commencing the Services, the Contractor shall obtain and maintain at its own cost: (a) Commercial General Liability of at least \$2,000,000 CAD per occurrence, naming CLFN as an additional insured; (b) Automobile Liability of at least \$2,000,000; (c) Builder's Risk / Course of Construction insurance in the full value of the Services where Schedule A involves new construction or substantial structural alteration; (d) Property insurance including overlap coverage extending ten (10) days after Total Completion; and (e) any further coverage reasonably required by CLFN.

11.2 Certificates. A Certificate of Insurance shall be delivered to the Housing Manager before site mobilization. The certificate shall require thirty (30) days' written notice to CLFN of cancellation or material change.

11.3 Cross-liability. All liability policies shall contain a cross-liability and severability of interests clause.

12. WSIB, HEALTH AND SAFETY

12.1 WSIB clearance. The Contractor shall be in good standing with the WSIB and shall provide a valid WSIB Clearance Certificate before commencement and at each Proper Invoice. CLFN may withhold payment until a valid certificate is on file.

12.2 OHSA compliance. The Contractor acknowledges it is an "employer" and, where applicable, a "constructor" within the meaning of OHSA. The Contractor shall comply with OHSA, O. Reg. 213/91, file a Notice of Project where required, provide all required PPE and training, maintain a written health and safety policy, and report all workplace incidents to the Housing Manager within twenty-four (24) hours.

12.3 Designated substances. Before commencement, CLFN shall provide a list of any designated substances (asbestos, lead, silica, mould, etc.) known to be present at the Property. Discovery of suspected hazardous materials shall trigger immediate stop-work and written notice to the Housing Manager.

13. SUBCONTRACTORS

13.1 Use of subcontractors. The Contractor shall not subcontract any portion of the Services without prior written approval of the Housing Manager.

13.2 Qualifications. For each approved subcontractor, the Contractor shall provide legal name, contact, trade qualifications, WSIB Clearance Certificate, and evidence of liability insurance.

13.3 Responsibility. The Contractor remains fully responsible for the acts and omissions of its subcontractors and suppliers.

13.4 Local hire and Indigenous preference. Where qualified local labour and Indigenous-owned businesses are available, the Contractor shall give them preference, consistent with CLFN procurement policy.



14. INSPECTION, DEFICIENCIES, AND ACCEPTANCE

14.1 Right of inspection. The Housing Manager and any CLFN-retained inspector may inspect the Services at any time during and after the work.

14.2 Pre-Substantial Performance inspection. The Contractor shall request a pre-Substantial Performance inspection at least five (5) business days in advance. The Housing Manager shall issue a Deficiency List within five (5) business days.

14.3 Remedy of Deficiencies. The Contractor shall remedy all Deficiencies within fifteen (15) days (or such other period as the Housing Manager specifies). Failure to do so entitles CLFN to engage another contractor at the Contractor's cost.

14.4 Substantial Performance certificate. Once all Deficiencies are remedied, the Housing Manager shall issue a Certificate of Substantial Performance under the Construction Act.

14.5 Total Completion. Total Completion occurs when all Services, all Deficiencies, and all close-out documentation (permits, warranties, manuals, as-built information) have been delivered to the Housing Manager's satisfaction.

15. WARRANTY

15.1 Workmanship warranty. The Contractor warrants the Services and all materials supplied against defects in workmanship and materials for a period of twelve (12) months from the date of Substantial Performance (the "Warranty Period").

15.2 Manufacturer warranties. All manufacturer warranties shall be assigned to CLFN at Total Completion and listed in a warranty register.

15.3 Response time. During the Warranty Period, the Contractor shall respond to warranty calls within five (5) business days. Emergency defects shall be addressed within twenty-four (24) hours.

15.4 Survival. Warranty obligations survive termination or expiry of this Agreement.

15.5 Exclusions. Warranty does not apply to damage caused by the tenant, vandalism, normal wear and tear, or third-party alteration after Total Completion.

16. LIENS AND STATUTORY DECLARATIONS

16.1 No liens. The Contractor shall comply with all requirements of the Construction Act respecting lien rights and shall keep the Property and CLFN's interest free of liens.

16.2 Statutory Declaration. With every Proper Invoice after the first, and with the final invoice, the Contractor shall deliver a Statutory Declaration (CCDC Form 9A or equivalent) confirming all amounts owing have been paid, except holdback.

16.3 Discharge of liens. If a lien is registered, the Contractor shall vacate or discharge it within ten (10) days at its own cost, failing which CLFN may do so and set off all costs against amounts owing.

17. INDEMNIFICATION

17.1 Contractor indemnity. The Contractor shall indemnify, defend, and hold harmless CLFN, its Chief and Council, employees, officers, and agents from all claims, damages, losses, and expenses (including legal fees on a substantial indemnity basis) arising from any breach by the Contractor, negligence or wilful misconduct, bodily injury or property damage, failure to comply with OHSA, the Construction Act, the Building Code, or WSIB requirements, and any lien or claim asserted by a subcontractor or supplier.

17.2 Survival. This indemnity survives termination or expiry of this Agreement.

17.3 CLFN indemnity. CLFN shall indemnify the Contractor against third-party claims arising solely from CLFN's negligence or wilful misconduct.

18. TERMINATION



18.1 Termination for cause. CLFN may terminate this Agreement immediately on written notice if the Contractor abandons the Services, becomes insolvent, fails to maintain required insurance or WSIB, materially breaches and fails to cure within ten (10) days of written notice, or engages in fraud, theft, harassment, or any act endangering health, safety, or community welfare.

18.2 Consequences of termination for cause. On termination for cause, CLFN may complete the Services using another contractor, set off all resulting costs against amounts otherwise owing, and pursue all available remedies.

18.3 Termination for convenience. CLFN may terminate for any reason on thirty (30) days' written notice. The Contractor shall be paid for Services properly performed to the date of termination, plus reasonable demobilization costs, and shall have no further claim.

18.4 Contractor termination. The Contractor may terminate on thirty (30) days' written notice only if CLFN fails to pay an undisputed Proper Invoice within sixty (60) days of receipt and fails to cure within fifteen (15) days of written notice.

19. FORCE MAJEURE

19.1 Definition. A "Force Majeure Event" means an event beyond the reasonable control of a Party, including fire, flood, severe weather, pandemic, public health order, wildfire evacuation, road closure preventing access to the reserve, declared emergency, war, or civil unrest.

19.2 Effect. A Party affected by a Force Majeure Event shall give prompt written notice and use commercially reasonable efforts to mitigate. Performance obligations are suspended for the duration. If the event continues for more than ninety (90) days, either Party may terminate with the consequences of section 18.3.

20. CONFIDENTIALITY AND DATA SOVEREIGNTY

20.1 Confidential Information. The Contractor shall not disclose, use, or copy any non-public information about CLFN, its members, tenants, finances, governance, or operations, except as required to perform the Services or by law. This obligation survives termination.

20.2 Tenant privacy. Where Services are performed in an occupied unit, the Contractor shall respect tenant privacy, take no photographs except of work in progress, and shall not disclose information about tenants.

20.3 Indigenous data sovereignty. Any information collected, generated, or compiled in performance of this Agreement that relates to CLFN, its members, or its lands belongs to CLFN. The Contractor acknowledges CLFN's adherence to OCAP® principles as administered by the First Nations Information Governance Centre (FNIGC).

21. INTELLECTUAL PROPERTY AND DELIVERABLES

21.1 All as-built drawings, photographs, reports, manuals, and documentation produced under this Agreement are the property of CLFN. The Contractor grants CLFN an irrevocable, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables to the extent necessary for CLFN's ongoing use and maintenance of the work.

21.2 Return of property. On termination or expiry, the Contractor shall return all CLFN property, documents, keys, and credentials.

22. INDEPENDENT CONTRACTOR

22.1 The Contractor is an independent contractor, not an employee, agent, partner, or joint venturer of CLFN. The Contractor is responsible for all its own employment-related obligations including remuneration, deductions, EI, CPP, and WSIB.

23. CONSUMER PROTECTION ACT

23.1 Acknowledgement. Where and to the extent that the CPA applies to this Agreement, the Parties shall comply with it. The Contractor confirms it has not engaged in any false, misleading, or unconscionable representations within the meaning of the CPA.



23.2 Status of CPA application. The Parties acknowledge that this Agreement is between a First Nation acting in its governmental and housing administration capacity and a contractor, and that the CPA primarily protects natural-person consumers. To the extent CPA cancellation, cooling-off, or disclosure provisions are not applicable, this clause is included for transparency and good-faith compliance.

23.3 Forward compatibility. Upon proclamation of the Consumer Protection Act, 2023, this Agreement shall be deemed amended to the minimum extent necessary to comply with that Act.

24. NOTICES

24.1 Notices required under this Agreement shall be in writing and delivered by email (with read receipt or acknowledgement requested) and concurrently by hand, courier, or registered mail to the addresses on page 1.

25. ASSIGNMENT

25.1 The Contractor shall not assign this Agreement, in whole or in part, without CLFN's prior written consent. CLFN may assign this Agreement to a successor body or to an entity controlled by CLFN.

26. GENERAL PROVISIONS

26.1 Entire Agreement. This Agreement, including its Schedules, is the entire agreement between the Parties and supersedes all prior negotiations, representations, and agreements.

26.2 Amendment. No amendment is binding unless in writing and signed by both Parties. Change orders under section 7 are amendments to the extent of their subject matter.

26.3 Severability. If any provision is held invalid or unenforceable, the remaining provisions remain in full force.

26.4 Waiver. No waiver of any breach is a waiver of any subsequent breach. Waivers must be in writing to be effective.

26.5 Headings. Headings are for convenience only and do not affect interpretation.

26.6 Enurement. This Agreement enures to the benefit of and binds the Parties and their respective successors and permitted assigns.

26.7 Electronic Execution. This Agreement may be executed in counterparts and by electronic signature. Electronic signatures are valid and binding under the *Electronic Commerce Act, 2000* (Ontario).

27. ORDER OF PRECEDENCE

In the event of conflict between documents forming this Agreement, the following order of precedence applies (highest first):

1. This signed Agreement, as amended by executed change orders;
2. Schedule A — Statement of Work and Pricing;
3. Schedule B — Payment Schedule;
4. The Contractor's Quote referenced on page 1.



28. ACKNOWLEDGEMENT AND SIGNATURES

The Parties acknowledge that they have read this Agreement in full, that they understand its terms, that they have had the opportunity to seek independent advice, and that they agree to be bound by it.

Contractor Acknowledgement: By initialling below, the Contractor confirms that it is in good standing with WSIB, holds the insurance required under section 11, will comply with the Construction Act and OHSA, and accepts the prompt payment and adjudication framework set out in sections 8 and 10.

Contractor

Initial:

FOR THE CLIENT — CONSTANCE LAKE FIRST NATION

Signature:

Date:

Print Name:

Title:

FOR THE CONTRACTOR

Signature:

Date:

Print Name:

Title:

I have authority to bind the Contractor.

WITNESS

Signature:

Date:

Print Name:



SCHEDULE A — STATEMENT OF WORK

Property: Project Type:
SOW Reference: Quote Reference:

A.1 Scope Summary

A.2 Detailed Scope by Work Package

The R&R Module renders this as a structured table of work packages pulled from the linked Quote.

A.3 Materials and Specifications

A.4 Pricing Summary

Enter each amount in CAD, excluding tax.

Materials Total (\$):	
Labour Total (\$):	
Equipment Total (\$):	
Other Total (\$):	
Subtotal — excl. tax (\$):	
HST/GST (\$):	
TOTAL CONTRACT PRICE — incl. tax (\$):	
Total Labour Hours estimate:	

A.5 Exclusions and Assumptions



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A.6 CLFN-Supplied Items

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SCHEDULE B — PAYMENT SCHEDULE

Payments are subject to: (i) submission of a Proper Invoice under section 8; (ii) retention of 10% Holdback under section 9; (iii) Housing Manager certification of milestone achievement.

Milestone 1

Name / Trigger:			
% of Price:		Gross (\$):	
Holdback (\$):		Net Payment (\$):	

Milestone 2

Name / Trigger:			
% of Price:		Gross (\$):	
Holdback (\$):		Net Payment (\$):	

Milestone 3

Name / Trigger:			
% of Price:		Gross (\$):	
Holdback (\$):		Net Payment (\$):	

Milestone 4

Name / Trigger:			
% of Price:		Gross (\$):	
Holdback (\$):		Net Payment (\$):	

Holdback Release (*post-Substantial Performance + lien period, 10% of Contract Price*)

Holdback Release Amount (\$):	
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End of Agreement. Form REN-001 — CLFN Housing Department — Issued under the CLFN Procurement & Housing Policy (2026).